

HOUSE No. 369

The Commonwealth of Massachusetts

PRESENTED BY:

Brandy Fluker-Reid

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting black girls from targeted toxicity.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Brandy Fluker-Reid</i>	<i>12th Suffolk</i>	<i>1/15/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/6/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/10/2025</i>

HOUSE No. 369

By Representative Fluker-Reid of Boston, a petition (accompanied by bill, House, No. 369) of Brandy Fluker-Reid, Samantha Montañó and Lindsay N. Sabadosa relative to the promotion, display or advertising of cosmetic products that contain harmful ingredients. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3783 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting black girls from targeted toxicity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 94 of the General Laws is hereby amended by adding the following
2 section:-

3 Section 190A. (a) For the purposes of this section, the following terms shall, unless the
4 context clearly requires otherwise, have the following meanings:

5 “Advertisement”, any oral, written, graphic or pictorial representation made by a seller in
6 the course of the solicitation of retail business or which encourages a person to purchase a retail
7 product.

“Cosmetic product”, articles that are: (i) intended to be rubbed, poured, sprinkled, or sprayed on, introduced into, or otherwise applied to the human body or any part thereof for cleansing, beautifying, promoting attractiveness, or altering the appearance; and (ii) articles intended for use as a component of any such articles. A cosmetic product shall include products and product ingredients that are manufactured or intended to be used for skin lightening and hair relaxation.

“Harmful ingredients”, chemical components of a product or product component that are toxic or have otherwise been found to have damaging health effects on the product user, including mercury, parabens, estrogenic chemicals from placenta, benzophenone, diethanolamine, nonylphenol, phthalates and talc powder, and other chemicals known to be endocrine disruptors. Damaging health effects include the increased risk of developing a deleterious condition in the future.

(b) No person shall make, promote or display an advertisement targeted towards children under the age of 18 for a cosmetic product that contains harmful ingredients.

(c) No person shall make, promote or display an advertisement that utilizes the image, voice or depiction of a child under the age of 18 the purposes of promoting the sale of a cosmetic product that contains harmful ingredients.

(d) A violation of this section shall be punishable by a fine of not less than \$5,000 for the first violation and not less than \$10,000 for subsequent violations.

(e) (1) The attorney general may initiate proceedings relating to a violation of this section. Such proceedings may include, without limitation, an injunction, a civil penalty and additional relief in a court of competent jurisdiction.

(2) A person harmed by a violation of this section may: (i) bring an action to enjoin the violation; (ii) bring an action to recover for actual monetary loss from the violation or to receive not more than \$25,000 in damages for the violation, whichever is greater; or (iii) bring both such actions.

(f) The attorney general shall promulgate any regulations necessary to implement this section.

SECTION 2. This act shall take effect 90 days following its passage.